



DECISION

Complaint No. : POS/1569/2025

Name and address of the complainant : Mr. Arshad Hussain Bozdar S/o Ghulam Hussain Bozdar, R/o Taluka Matli, District Badin

Name of the Agency Complained against : Revenue Department

Name & Designation of Investigating Officer : Abdul Wahab Memon, Regional Director, Badin

Vetted by : Fasihuddin Khan, Advisor 'Z'

Subject : COMPLAINT AGAINST THE REVENUE DEPARTMENT REGARDING INACTION ON APPLICATION MADE FOR PARTITION OF JOINT AGRICULTURAL LAND AT DEH GHARO SARMAST AND DEH DHADHER, TALUKA MATLI, DISTRICT BADIN

COMPLAINT

Mr. Arshad Hussain Bozdar S/o Ghulam Hussain filed a complaint on 28.02.2025 regarding inaction by the Mukhtiarkar and the Assistant Commissioner, Matli on his application made for partition of joint agricultural land in Deh Gharo Sarmast and Deh Dhadher, Taluka Matli, for want of illegal gratification. Aggrieved by that, he approached this Institution for intervention in the matter.

PROCEEDINGS

2. The complaint was admitted u/s 10 of the Establishment of the Office of Ombudsman for the Province of Sindh Act, 1991 (amended up to date) after receiving mandatory Affidavit on Form 'A' and other relevant documents for investigation.
3. The matter was taken up with the Assistant Commissioner, Matli vide letter dated 26.03.2025 followed by a reminder on 08.05.2025 for report. In response, the Mukhtiarkar (Revenue), Matli submitted vide letter dated 10.07.2025 that Irshad Hussain and Munawar Hussain, both the sons of Ghulam Hussain submitted an application for partition of the joint land bearing survey No.91, 92 admeasuring 77-29 acres at Deh Gharo Sarmast and some other land at Deh Dhadhar, Taluka Matli on 27.07.2024 to the office of Assistant Commissioner, Matli. During the partition proceedings, they received application from the sisters of the complainant namely Mst. Hameeda, Mst. Zulekha and others stating therein that they had share in their father's property but their share had been usurped fraudulently by their brothers. Subsequently, notices

were issued to the parties on 19.08.2024 for appearance in the office of Assistant Commissioner, Matli. The Mukhtiarkar (Revenue), Matli further stated that as the genuineness of entry had been challenged by sisters of the complainant, therefore, the matter was referred to the Deputy Commissioner, Badin vide letter dated 12.02.2025 by their office. Moreover, the matter was also under litigation and pending before the court of Senior Civil Judge, Matli in FC Suit No.42 of 2025. The Mukhtiarkar added that the allegations leveled by the complainant against the Revenue authorities were baseless. The above report was sent to the complainant on 15.08.2025 followed by the hearing notice for 19.08.2025 but the complainant did not respond.

FINDING

4. The subject matter being sub-judice before the Senior Civil Judge, Matli, in FC Suit No.42 of 2025, further proceedings are not possible by this Institution u/s 9(1) of the Act 1991.

DECISION

5. In view of the above and in exercise of powers vested in me u/s 11 of Establishment of the Office of Ombudsman for Province of Sindh Act, 1991 (amended upto date), the complaint is disposed of as subjudice before the court of law.

Given under my hand and seal of Office.



Sd /-
(MUHAMMAD SOHAIL RAJPUT)

Sitara-e-Imtiaz - PAS
Ombudsman, Sindh

Karachi, dated

21st November, 2025